



CHAPTER vi

An Act to vest the churchyard appurtenant to the church of Saint Stephen Coleman Street in the London Diocesan Fund to enable the London Diocesan Fund to sell such churchyard to authorise the erection of buildings on such churchyard and for other purposes.

[6th May 1955.]

WHEREAS the church of Saint Stephen Coleman Street (hereinafter in this Act referred to as "the church") which is situated on the west side of Coleman Street in the city of London (hereinafter referred to as "the city") was severely damaged by enemy action in the year one thousand nine hundred and forty:

And whereas by a reorganisation scheme for the city made under the Reorganisation Areas Measure 1944 which came into operation on the second day of February one thousand nine hundred and fifty-four it was provided—

- (a) that the benefice of Saint Stephen Coleman Street should be united with the benefice of Saint Margaret Lothbury with Saint Christopher-le-Stocks Saint Bartholomew-by-the-Exchange Saint Olave Old Jewry Saint Martin Pomeroy Saint Mildred Poultry and Saint Mary Colechurch so as to form a new benefice with cure of souls under the style of "the benefice of Saint Margaret Lothbury and Saint Stephen Coleman Street with Saint Christopher-le-Stocks Saint Bartholomew-by-the-Exchange Saint Olave Old Jewry Saint Martin Pomeroy Saint Mildred Poultry and Saint Mary Colechurch";
- (b) that a part of the parish of Saint Stephen Coleman Street (including the church) should be united with other areas and become one parish for ecclesiastical purposes known as "the parish of Saint Margaret Lothbury and Saint

Stephen Coleman Street with Saint Christopher-le-Stocks Saint Bartholomew-by-the-Exchange Saint Olave Old Jewry Saint Martin Pomeroy Saint Mildred Poultry and Saint Mary Colechurch ” with the church of Saint Margaret Lothbury as its parish church;

- (c) that the church should be closed by the Bishop of London and that a certificate of the closing thereof should be deposited by him in the registry of the diocese of London and a copy thereof should be sent by him to the Diocesan Board of Finance for the diocese of London and thereafter the church should be wholly demolished by that board and the site thereof should be sold let or exchanged by that board:

And whereas the Diocesan Board of Finance for the diocese of London for the purposes of the said Measure and scheme is a company incorporated under the Companies Acts 1908 to 1917 the name of which is “ the London Diocesan Fund ”:

And whereas upon the said scheme coming into operation the church became vested in the London Diocesan Fund pursuant to the provisions of subsection (1) of section thirty-two of the said Measure and section twenty-six of the said scheme:

And whereas the Bishop of London closed the church on the eighth day of February one thousand nine hundred and fifty-four and deposited a certificate of the closing thereof in the registry of the diocese of London and sent a copy of the certificate to the London Diocesan Fund on the twelfth day of February in that year:

And whereas on the eighteenth day of July one thousand nine hundred and fifty-four the Archdeacon of London conducted a service in the remains of the church according to the form of prayers and declaration issued by the authority of the Archbishops of Canterbury and York to be used when a consecrated building or consecrated ground has been or is about to be surrendered to secular uses under lawful authority such service being the formality directed by the Bishop of London to be observed with respect to the closing of the church under the provisions of subsection (4) of section twenty of the said Measure:

And whereas the London Diocesan Fund intends shortly to complete the demolition of the church and to sell the site thereof pursuant to the provisions of the said Measure and scheme:

And whereas there are appurtenant to the church to the north and south thereof respectively two pieces of land which form the churchyard thereof and which are believed formerly to have been used for the interment of human remains but which have not

been so used since the year one thousand eight hundred and fifty-three when burials therein were discontinued pursuant to an Order in Council of Her late Majesty Queen Victoria dated the eighth day of August in that year:

And whereas the said two pieces of land are more particularly described in the schedule hereto and are hereinafter called "the scheduled lands":

And whereas by virtue of the said scheme the freehold of the scheduled lands is vested in the incumbent of the said united benefice:

And whereas the Reverend Alfred John Drewett is at present the incumbent thereof:

And whereas the site of the church cannot conveniently be used and developed otherwise than in conjunction with the scheduled lands and accordingly cannot readily be sold apart from the scheduled lands:

And whereas it is expedient that the scheduled lands should be sold together with the site of the church and that the purchaser thereof should be enabled to use and develop the same in conjunction with the said site:

And whereas it is expedient that such provisions as are contained in this Act with respect to the vesting sale and development of the scheduled lands and the removal therefrom of any human remains interred therein should be enacted:

And whereas it is expedient that the several provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Saint Stephen Coleman Street Short title. Act 1955.

2. In this Act unless the subject or context otherwise requires— Interpretation.

"the bishop" means the Bishop of London for the time being and during a vacancy in the see of London includes the guardian of the spiritualities thereof;

"the church" means the church of Saint Stephen Coleman Street situated on the west side of Coleman Street in the city;

- “ the city ” means the city of London;
- “ the commissioners ” means the Church Commissioners;
- “ the corporation ” means the mayor and commonalty and citizens of the city;
- “ the council ” means the mayor aldermen and commons of the city in common council assembled;
- “ enactment ” has the same meaning as in the Town and Country Planning Act 1947;
- “ the Fund ” means the London Diocesan Fund;
- “ the owner ” means the person or persons or corporation in whom the scheduled lands are for the time being vested;
- “ the scheduled lands ” means the lands described in the schedule hereto which said lands are shown and coloured green on a plan marked “ Plan of the scheduled lands ” signed in triplicate by the Right Honourable the Lord Merthyr the chairman of the committee of the House of Lords to whom the Bill for this Act was referred one copy of which has been deposited at the Office of the Clerk of the Parliaments House of Lords one in the Private Bill Office of the House of Commons and one at the office of the Fund at London Diocesan House 33 Bedford Square London W.C.1.

Vesting of
scheduled
lands.

3. Upon the passing of this Act the freehold of the scheduled lands together with all rights and easements appurtenant thereto shall forthwith by virtue of this Act become vested in the Fund.

Power to sell
scheduled
lands and
application
of proceeds.

4.—(1) The Fund may sell the scheduled lands or any part thereof or any easement right or privilege of any kind over or in relation thereto for such price or consideration in such manner and upon and subject to such terms and provisions as the Fund may think fit.

(2) The Fund after deducting the amount of any costs charges and expenses incurred by the Fund under section 10 (Costs of Act) of this Act or in connection with any sale shall pay the net proceeds of any sale effected under the powers conferred by this section to the commissioners.

(3) All moneys received by the commissioners under this section shall be dealt with by the commissioners in accordance with the provisions of section thirty-three of the Reorganisation Areas Measure 1944 as if the same were moneys received by them under section thirty-one or thirty-two of that Measure in respect of sales of property within the diocese of London.

5. As from the passing of this Act but subject to the provisions thereof the scheduled lands shall be freed and discharged from all trusts uses obligations disabilities and restrictions whatsoever which immediately before the passing thereof attached thereto under ecclesiastical law or otherwise and from all rights and interests of any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the scheduled lands and from all other trusts uses obligations disabilities and restrictions whatsoever which attached thereto immediately before the passing of this Act by reason of the scheduled lands or any part thereof being a disused burial ground or forming the churchyard or enclosures of the church or otherwise:

Discharge of trusts and restrictions affecting scheduled lands and saving for private rights.

Provided that nothing in this Act shall operate to affect prejudicially any private right or easement (not being a right in respect of a grave) over the scheduled lands or any part thereof which attached thereto immediately before the passing of this Act.

6. Notwithstanding anything contained in any enactment but subject to the provisions of this Act it shall be lawful at any time after the passing of this Act to use deal with or dispose of the scheduled lands or any part thereof for building or for any other purpose in like manner as if no part thereof had ever been consecrated or used or set apart for the purpose of burial of human remains or had ever been or formed the churchyard or enclosures of the church.

Power to use scheduled lands for building or other purposes.

7.—(1) Before erecting or causing to be erected any building on the scheduled lands the owner shall remove or cause to be removed therefrom the remains of all deceased persons interred therein.

Removal of human remains from scheduled lands.

(2) Before proceeding to remove any such remains the owner shall give notice of his intention so to do by publishing a notice once in each of two successive weeks in a newspaper circulating in the city with an interval between each publication of not less than six clear days and by displaying the notice in a conspicuous place in the scheduled lands and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) (7) and (8) of this section.

(3) At any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the scheduled lands or any part thereof may give notice in writing to the owner of his intention to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose but subject as hereinafter mentioned to any regulations made by the bishop to cause such remains to be removed to and reinterred in any consecrated burial ground or

cemetery in which burials may legally take place but in the case of a churchyard only with the consent of the incumbent of the parish.

(4) If any person giving such notice as aforesaid shall fail to satisfy the owner that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the Consistory Court of the Diocese of London who shall have power to make an order specifying who shall remove the remains and as to the payment of the costs of the application.

(5) The expenses of such removal and reinterment (not exceeding in respect of remains removed from any one grave the sum of twenty-five pounds) shall be defrayed by the owner such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the owner in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section and with any regulation of the bishop the owner may without any faculty for that purpose remove the remains of the deceased person and cause them to be interred in such other consecrated burial ground or cemetery in which burials may legally take place as subject to the consent of the bishop the owner thinks suitable for the purpose but in the case of interment in a churchyard the previous consent of the incumbent of the parish shall also be required.

(7) Upon any removal of remains from the scheduled lands a certificate of removal and reinterment shall be sent to the Registrar General by the owner giving the dates of removal and reinterment respectively and identifying the place from which the remains were removed and the place in which they were reinterred showing the particulars of each removal separately and every such certificate shall be deposited at the General Register Office with the miscellaneous records in the custody of the Registrar General.

(8) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the owner be removed and re-erected at the place of reinterment of such remains or at such place as the bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the owner and the owner shall cause to be made a record of such monuments and tombstones and of their situation when re-erected showing the particulars respecting each monument and tombstone as a separate entry and such record shall be

deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar General.

(9) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the city.

8. All objects of geological or antiquarian interest discovered on or under the scheduled lands during the execution of any works therein by the owner shall subject to the rights of the Crown and except so far as they may be the property of any other person be carefully preserved and removed and shall be deposited in the Guildhall Museum as the property of the corporation and the corporation acting by the council shall during the execution of any such works have power to enter and inspect such works for the purposes of this section. Deposit of objects of interest.

9. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 (Development orders) and subsection (1) of section 118 (Application to land regulated by special enactments) of that Act. Saving for town and country planning.
10 & 11 Geo. 6.
c. 51.

10. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Fund which may apply for that purpose the proceeds of any sale effected under the provisions of this Act. Costs of Act.

THE SCHEDULE

DESCRIPTION OF THE LANDS DEALT WITH BY THE FOREGOING ACT

Two pieces of land in the city forming the churchyard of Saint Stephen Coleman Street and believed formerly to have been used for the burial of human remains and comprising—

- (a) a piece of land containing 2752 square feet or thereabouts bounded on or towards the north by the premises known as Selection Trust Buildings and Pimm's Restaurant respectively in Masons Avenue on or towards the east by premises known as numbers 34 and 35 Coleman Street on or towards the south by the site of the church and on or towards the west by premises known as numbers 9 to 12 Basinghall Street;
- (b) a piece of land containing 1436 square feet or thereabouts bounded on or towards the west and north by the site of the church on or towards the east by Coleman Street and on or towards the south by premises known as the Swiss Bank.

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Saint Stephen Coleman Street Act, 1955

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ARRANGEMENT OF SECTIONS

Section

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2. Interpretation.
3. Vesting of scheduled lands.
4. Power to sell scheduled lands and application of proceeds.
5. Discharge of trusts and restrictions affecting scheduled lands and saving for private rights.
6. Power to use scheduled lands for building or other purposes.
7. Removal of human remains from scheduled lands.
8. Deposit of objects of interest.
9. Saving for town and country planning.
10. Costs of Act.

SCHEDULE—Description of the lands dealt with by the foregoing Act.

